

SENATE No. 2742

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enhancing safety and security for candidates and professionals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>11/4/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>11/5/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>11/6/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>11/10/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>1/13/2026</i>

SENATE No. 2742

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 2742) (subject to Joint Rule 12) of Rebecca L. Rausch, James K. Hawkins, Brian M. Ashe, Michael O. Moore and others for legislation to enhance safety and security for candidates and professionals. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing safety and security for candidates and professionals.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to enhance the safety and security of candidates for public office and professionals, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Clause Twenty-sixth of section 7 of chapter 4 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended in subclause (o) by striking out, in line
3 243, the words “the home address, personal email address and home telephone number of” and
4 inserting in place thereof the following words:- the residential or home-based office address,
5 personal email address and home, home-based office or personal mobile telephone number of an
6 elected official, or.

7 SECTION 2. Section 5 of chapter 53 of the General Laws, as appearing in the 2022
8 Official Edition, is hereby amended by striking out, in line 4, the word “residences” and inserting
9 in place thereof the following words:- municipalities of residence.

SECTION 3. Section 6 of said chapter 53, as so appearing, is hereby amended by striking out, in line 17, the word “addresses” and inserting in place thereof the following words:- municipalities of residence.

SECTION 4. Section 8 of said chapter 53, as so appearing, is hereby amended by striking the first eight words in line 3 and inserting in place thereof the following words:- their municipality of residence; provided, however, that the secretary shall through alternate means collect each candidate’s residential address, with street and number, if any, which shall be maintained by the secretary in accordance with clause Twenty-sixth of section 7 of chapter 4.

SECTION 5. Section 34 of said chapter 53, as so appearing, is hereby amended by striking out the last nine words in the fifth paragraph and inserting in place thereof the following words:- their municipality of residence; provided, however, that the secretary shall through alternate means collect each candidate’s residential address, with street and number, if any, which shall be maintained by the secretary in accordance with clause Twenty-sixth of section 7 of chapter 4.

SECTION 6. Section 45 of said chapter 53, as so appearing, is hereby amended by striking out, in lines 2 and 3, the words “his residence, with street and number thereof, if any” and inserting in place thereof the following words:- their municipality of residence.

SECTION 7. Section 106 of said chapter 53, as so appearing, is hereby amended by striking out the last eight words in the fourth sentence and inserting in place thereof the following words:- precinct or ward, or both, as applicable, of the candidate’s residence.

SECTION 8. Section 41 of chapter 54 of the General Laws, as appearing in the 2022 official edition, is hereby amended by striking out, in lines 6 and 7, the words “he resides, with

the name of the street and the number, if any, of his residence” and inserting in place thereof the following words:- the candidate resides.

SECTION 9. Said section 41 of said chapter 54, as so appearing, is hereby further amended by striking out the third sentence and inserting in place thereof the following words:- To the name of each candidate for a county office shall be added the name of the city or town where the candidate resides. To the name of each candidate for city or town office shall be added the ward or precinct where the candidate resides, or both ward and precinct, as applicable.

SECTION 10. Said section 41 of said chapter 54, as so appearing, is hereby further amended by striking out, in lines 28-30, the words “the name of the street on which they reside, with their street number, if any, and”.

SECTION 11. Section 41A of said chapter 54, as so appearing, is hereby amended by striking out, in line 4, the words “and addresses”.

SECTION 12. Section 42 of said chapter 54, as so appearing, is hereby amended by striking out, in line 34, the words “address” and inserting in place thereof the following words:- municipality of residence.

SECTION 13. Said section 42 of said chapter 54, as so appearing, is hereby further amended by striking out, in lines 41 and 44, the word “addresses” each time it appears and inserting in place thereof, in each instance, the following words:- municipalities of residence.

SECTION 14. Section 49 of said chapter 54, as so appearing, is hereby amended by striking out, in line 3, the word “residences” and inserting in place thereof the following words:- municipalities of residence.

SECTION 15. Section 50 of said chapter 54, as so appearing, is hereby amended by striking out, in line 2, the word “residences” and inserting in place thereof the following words:- wards or precincts of residence, or both, as applicable.

SECTION 16. Section 51 of said chapter 54, as so appearing, is hereby amended by striking out, in line 3, the word “residences” and inserting in place thereof the following words:- wards or precincts of residence, or both, as applicable.

SECTION 17. Section 77 of said chapter 54, as so appearing, is hereby amended by adding, in line 8, before the word “residence” the following words:- municipality of.

SECTION 18. Section 78 of said chapter 54, as so appearing, is hereby amended by adding, in line 19, before the word “residence” the following words:- municipality and state of.

SECTION 19. Section 78A of said chapter 54, as so appearing, is hereby amended by striking out, in line 4, the word “addresses” and inserting in place thereof the following words:- municipalities of residence.

SECTION 20. Said section 78A of said chapter 54, as so appearing, is hereby further amended by striking out, in line 5, the word “addresses” and inserting in place thereof the following words:- municipalities and states of residence.

SECTION 21. Section 10B of chapter 66 of the General Laws, as amended by chapter 135 of the acts of 2024, is hereby amended by striking out the first 15 words of the second paragraph and inserting in place the following words:- The residential or home-based office address, personal email address and home, home-based office or personal mobile telephone number of an elected official, or law enforcement, judicial, prosecutorial, public defense.

SECTION 22. Said section 10B of said chapter 66, as so appearing, is hereby further amended by inserting, in line 23, after the word “an” the following word:- applicable.

SECTION 23. Said chapter 66, as so appearing, is hereby further amended by inserting the following section:-

Section 10C. (a) For purposes of this section, the following words shall have the following meanings unless the context clearly indicates otherwise:

“Elected official”, any person who has been duly elected to a public office and is currently serving in that position, has been elected to public office but has not yet begun their term, or has formerly held elected public office.

“Family member”, a spouse, intended spouse, child, parent, sibling, or other person living in the same residence as a protected person.

“Judicial officer”, any person who serves as a clerk, clerk-magistrate, assistant clerk, or other individual serving in a role that helps facilitate judicial processes.

“Non-residential family member”, a spouse, intended spouse, child, parent, or sibling of a protected person who does not live in the same residence as the protected person.

“Personal information”, any of the following elements, whether or not in combination with another listed element: residential address, home-based office address, personal email address, home telephone number, home-based office telephone number, personal mobile telephone number, direct telephone number to a judicial officer’s private chambers, social security number, federal tax identification number, checking and savings account numbers, credit

or debit card numbers, birth or marital records, property tax records, and identities of children under the age of 18.

“Protected person”, an elected official, political candidate or candidates for public office, judge, judicial officer, law enforcement personnel, public prosecutors, public defenders, and state licensed professionals whose work subjects them to elevated safety risk.

(b) Notwithstanding any general or special law to the contrary, including but not limited to section 10 of this chapter, a department, office, commission, committee, council, board, division, bureau, institution, authority, and other entity of the commonwealth or its political subdivisions shall not make public or otherwise produce or provide the personal information of a protected person or their family members, except as necessary for the protected person’s employment or as required by law enforcement, state or federal investigatory authority, judicial order or process, or other government action within the color of law.

(c) A non-residential family member, state licensed professional, or public employee who is not a protected person under this section may submit a written petition in a form and manner determined by the secretary of the executive office of technology services and supports seeking to have their personal information protected, consistent with the provisions of this section. The petition shall identify: (1) the individual whose information is to be protected; (2) the personal information sought to be protected; (3) the type or location of government record or records containing the information to be protected; and (4) reasonable cause to believe the protection is necessary. The petitioner shall submit the form directly to the department, office, commission, committee, council, board, division, bureau, institution, authority, and other entity of the commonwealth or its political subdivisions having custody of the petitioner’s personal

information. Upon verification of the information submitted on the completed petition, the petitioner shall be considered a protected person under this section and the custodial body shall, within 30 days, redact or remove the petitioner's identified personal information from public listings. Once redacted or removed, the personal information shall not be subsequently disclosed.

(d) An individual whose personal information is made public as a result of a violation of this section may bring an action seeking real or declaratory relief, or both, in any court of competent jurisdiction. A prevailing plaintiff may be awarded treble damages. A prevailing plaintiff shall be awarded costs and reasonable attorneys' fees.

(e) The attorney general shall: (i) have concurrent jurisdiction with any private right of action brought pursuant to paragraph (d) to enforce the provisions of this section; and (ii) issue periodic determinations as to which state licensed professionals are deemed protected persons under this section due to work-related elevated safety risks.

SECTION 24. Chapter 265 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following section:

Section 37A. Intentional, willful, wanton, knowing, or grossly negligent publication, production, or provision of personal information in violation of section 10C of chapter 66 shall be punished by a fine of not more than \$50,000 or imprisonment in a house of correction for not more than two and one-half years, or both.

SECTION 25. Not later than 60 days after the effective date of this act, the secretary of the executive office of technology services and security shall provide training to employees of the commonwealth and its subdivisions whose job responsibilities include maintaining the privacy of protected persons or petitioners under this act.

SECTION 26. Not later than 90 days after the effective date of this act, the office of consumer affairs and business regulation shall provide educational resources to all protected persons and potential petitioners under this act.

SECTION 27. Not later than 120 days after the effective date of this act, any personal information of protected persons or family members, as those terms are defined in section 10C of chapter 66 of the General Laws, that is maintained by a department, office, commission, committee, council, board, division, bureau, institution, authority, and other entity of the commonwealth or its political subdivisions shall be: (a) removed or redacted from any public listing; and (b) protected from further disclosure consistent with this act. Such removal shall include, but shall not be limited to, removal of sample ballots from the websites of the secretary of the commonwealth and municipal clerks, as applicable. Removal efforts shall be documented in a report by each custodial entity. Not later than 135 days after the effective date of this act, such reports shall be submitted to the chairs of the joint committee on advanced information technology, the internet and cybersecurity, the chairs of the joint committee on election laws, the chairs of the joint committee on municipalities and regional government, the chairs of the joint committee on state administration and regulatory oversight, the chair of the senate committee on personnel and administration, and the chair of the house committee on human resources and employee engagement. The reports shall be exempt pursuant to subclause (a) of clause Twenty-sixth of section 7 of chapter 4 of the General Laws.

SECTION 28. This act shall take effect 30 days after its passage.